

[1 EDW. 8. & Ministry of Health
1 GEO. 6.] *Provisional Order Confirmation
(Ealing Extension) Act, 1937.*

[Ch. xii.]



CHAPTER xii.

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of Ealing. A.D. 1937.
[25th March 1937.]

WHEREAS under the provisions of the Local Government Act 1933 the Minister of Health has made a provisional order which needs confirmation by Parliament : 23 & 24 Geo. 5. c. 51.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Ealing Extension) Act 1937. Short title.

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SCHEDULE.*Ealing*
(*Extension*)
Order.

BOROUGH OF EALING.

*Provisional Order made in pursuance of the Local
Government Act 1933 for altering borough boundaries.*

WHEREAS by virtue of section 140 of the Local Government Act 1933 the Minister of Health is empowered to make a provisional order for altering the boundary of any borough;

And whereas the borough of Ealing is co-extensive with the parish of Ealing and the parish of Willesden which is co-extensive with the borough of Willesden immediately adjoins the borough;

And whereas a representation has been made to the Minister by the council of the borough of Ealing that it is desirable that the borough should be extended so as to include part of the parish and borough of Willesden:

Now therefore the Minister of Health in pursuance of the powers given to him by section 140 of the Local Government Act 1933 and of all other powers enabling him in that behalf hereby makes the following order:—

PART I.

PRELIMINARY.

Short title.

1. This order may be cited as the Ealing (Extension) Order 1936.

Division of
order into
parts.

2. This order is divided into the following parts (namely):—

Part I.—Preliminary.

Part II.—Alteration of areas.

Part III.—Membership of councils &c.

Part IV.—Administration of justice roads and county administration.

Part V.—Functions property liabilities &c. of local authorities.

Part VI.—Acts orders byelaws &c.

Part VII.—Rating and valuation.

Part VIII.—Officers.

Part IX.—Supplementary.

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3. Save as otherwise expressly provided this order shall A.D. 1937.
come into operation on the appointed day :

Provided that this order shall be deemed to have come into
operation as from such date earlier than the appointed day as may
be necessary for the following purposes (namely) :—

—
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PART I.
—cont.

- (a) the alteration or re-arrangement of any register of electors under the Representation of the People Acts; Commence-ment of order.
- (b) all proceedings preliminary or relating to any election under the Act of 1933;
- (c) the alteration of valuation lists to take effect on the appointed day or the preparation or revision of any estimate of the produce of a penny rate or the preparation or service of any precept to be made in respect of the financial year commencing on the appointed day; and
- (d) the preparation of any rate to be made in respect of a period commencing on the appointed day.

4. In this order unless the context otherwise requires the following expressions have the respective meanings hereby assigned to them :— Definition.

“ the appointed day ” means the first day of April nineteen hundred and thirty-seven;

“ existing ” means existing immediately before the appointed day;

“ the map ” means the map prepared in duplicate sealed with the official seal of the Minister and marked “ Map referred to in the Ealing (Extension) Order 1936 ”;

“ the county ” means the county of Middlesex and “ the county council ” means the county council of that county;

“ the boroughs ” means the boroughs of Ealing and Willesden;

“ the Ealing corporation ” means the corporation of the borough of Ealing and the “ Ealing council ” means the Ealing borough council;

“ the Willesden corporation ” means the corporation of the borough of Willesden and the “ Willesden council ” means the Willesden borough council;

“ the transferred area ” means that part of the parish and borough of Willesden which is transferred to the borough of Ealing;

“ the Act of 1929 ” means the Local Government Act 1929; 19 & 20

“ the Act of 1933 ” means the Local Government Act 1933; Geo. 5. c. 17.

“ the Minister ” means the Minister of Health.

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PART I.

—cont.
Regulations
under the
Act of 1929.

Sundays and
public
holidays.

Deposit and
copies of
map.

Copies of
map to be
evidence.

Extension
of Ealing
borough.

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5. This order shall have effect subject to the provisions of any regulations made or to be made by the Minister under Part VI of the Act of 1929 with respect to grants payable under that Part of that Act.

6. Where the day or the last day on which any thing is required or permitted by or in pursuance of this order to be done is a Sunday Christmas Day Good Friday bank holiday or a day appointed for public thanksgiving or mourning the requirement or permission shall be deemed to relate to the first day thereafter which is not one of the days before mentioned.

7.—(1) One duplicate of the map shall be deposited in the office of the Minister and the other shall be deposited in the office of the town clerk of Ealing.

(2) Within one month after the confirmation of this order the town clerk of Ealing shall send copies of the map each certified by him to be a true copy to the Secretary of State the Board of Inland Revenue the Registrar-General the Board of Trade the Minister of Transport the Minister of Agriculture and Fisheries the Electricity Commissioners the Commissioners of Customs and Excise the clerk of the county council and the town clerk of Willesden.

8.—(1) A copy of or an extract from the map certified by the town clerk of Ealing to be a true copy or extract shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the map or of that part of the map which is extracted so far as the map relates to the alteration by this order of the boundary of any area.

(2) The duplicate of the map deposited with the town clerk of Ealing shall at all reasonable times be open to inspection by any person affected by this order and on payment of a reasonable fee to be determined by the Ealing corporation any such person shall be entitled to a copy of or an extract from any of the maps and every such copy or extract shall be certified by the town clerk to be a true copy or extract.

(3) All fees so paid shall be carried to the credit of the general rate fund of the borough of Ealing.

PART II.

ALTERATION OF AREAS.

9.—(1) The borough of Ealing shall be extended to include that part of the borough of Willesden which is shown coloured pink on the map.

(2) The transferred area shall be transferred from the parish of Willesden to the parish of Ealing.

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PART II.
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(3) The transferred area shall form part of the Mount Park ward of the borough of Ealing.

10. The transferred area shall be transferred to the Ealing East electoral division the Brentford petty sessional division and the West Middlesex assessment area of the county.

Electoral
divisions
petty
sessional
divisions and
assessment
areas.

PART III.

MEMBERSHIP OF COUNCILS &C.

11.—(1) Any person who at the appointed day has been elected as a county councillor for any electoral division of the county which is altered shall be deemed to have been elected for the altered electoral division.

Existing
county
councillors.

(2) Any casual vacancy which may exist at the appointed day in the office of county councillor for any electoral division of the county which is altered shall be deemed to exist in the office of county councillor for the altered electoral division.

12. The persons who at the appointed day have been elected as mayor aldermen and councillors of either of the existing boroughs shall be deemed to have been elected as mayor aldermen and councillors of the altered borough and any councillor who is serving for any existing ward which is altered shall serve for the altered ward.

Existing
mayors
aldermen
and
councillors.

13.—(1) Any casual vacancy which may exist at the appointed day in the office of mayor or alderman of either of the boroughs shall be deemed to exist in the office of mayor or alderman of the altered borough.

Casual
vacancies.

(2) Any casual vacancy which may exist at the appointed day in any office of councillor for any ward of either of the boroughs which is altered shall be deemed to exist in the office of councillor for the altered ward.

14.—(1) For the purpose of the determination of the qualification of a person for election as a member of the council of either of the boroughs the alterations of area made by this order shall be deemed to have had effect on the first day of February nineteen hundred and thirty-six.

Qualifica-
tions of
members of
councils
joint boards
and
committees.

(2) Save as otherwise expressly provided any person who continues in office after the appointed day as a member of the council of either of the boroughs or as a member of a committee joint board or joint committee shall not during his existing term of office be deemed to lose his qualification for being a member by reason of any alteration of area made by this order and shall retire from office on the day on which he would have retired if this order had not been made.

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PART IV.

Ealing
(*Extension*)
*Order.*ADMINISTRATION OF JUSTICE ROADS AND COUNTY
ADMINISTRATION.Pending
proceedings
before
justices.

15. Notwithstanding the alterations of area made by this order—

- (a) every person committing an offence before the appointed day in any area affected by this order shall be tried and dealt with as if this order had not been made; and
- (b) every proceeding which has been begun before the appointed day by or before any court or justice in relation to any matter arising in or concerning any such area may be continued and completed in like manner and with the like incidents and consequences as nearly as may be as if this order had not been made.

Roads.

16. Any unclassified road within the transferred area shall by virtue of this order be transferred to and vest in the Ealing corporation:

Provided that this provision shall not apply to any road which immediately before Part III of the Act of 1929 came into operation was a main road or which would but for section 29 of the Act of 1929 be a main road.

Saving for
private
street works.
38 & 39 Vict.
c. 55.

17.—(1) Nothing in this order shall affect any notices given or proceedings taken under section 150 of the Public Health Act 1875 by the Willesden council in relation to any street within the transferred area and any proceedings taken or works commenced thereunder in relation to such street may be continued and completed in accordance with the provisions thereof by the Ealing council as if that council had given the notices and taken the proceedings or commenced the works thereunder.

(2) Where before the appointed day any works under section 150 of the Public Health Act 1875 have been commenced but not completed by the Willesden council in a street within the transferred area the Ealing council shall be entitled to recover—

- (a) such of the expenses incurred in commencing the works as the Willesden council could have recovered under that enactment; and
- (b) such of the expenses incurred by them in completing the works as the Willesden council could have recovered under that enactment had they completed the works;

and the Ealing council shall have all such powers for the recovery of the expenses aforesaid as they would have had if they had executed the whole of such works.

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18.—(1) The registration officer of the parliamentary county of Middlesex shall on publication supply the registration officer of the parliamentary borough of Ealing with a sufficient number of copies of the electors lists the lists of objections to the electors lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the transferred area and shall forthwith notify the registration officer of the parliamentary borough of his decisions on any objections or claims in respect of any such registration unit.

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—cont.

Duplicate
entries in
electors
lists.

(2) It shall be the duty of the registration officer of the parliamentary borough to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the borough of Ealing for the purpose of borough council elections or in the same electoral division for the purpose of county council elections.

7 & 8 Geo. 5.
c. 64.

(3) Where the registration officer of the parliamentary borough considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for any of the purposes mentioned in the foregoing provisions should be made in the electors lists for any registration unit comprising any part of the transferred area he shall forthwith notify the registration officer of the parliamentary county and that officer shall make such correction accordingly.

(4) This section shall apply to the preparation of the register of electors in the year nineteen hundred and thirty-seven and of later registers of electors.

19.—(1) If the register of local government electors for any electoral area affected by this order is not so framed as to show the persons entitled to vote at an election to be held for any electoral division ward or other voting area the registration officer of the parliamentary county or the registration officer of the parliamentary borough of Ealing or Willesden as the case may require shall make such alteration or re-arrangement of the register as may be necessary for the purpose of that election.

Registers
of electors.

(2) It shall be the duty of every officer designated for the performance of the duties of overseers in relation to the preparation of the registers of electors in either of the boroughs to render such assistance as may be required by a registration officer for the purpose of any alteration or re-arrangement authorised by this section of the registers for that borough or any area transferred thereto or therefrom.

(3) Any additional expense incurred by a registration officer solely for the purpose of making any alteration or re-arrangement

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—cont.

Jury
service.

of a register under this section shall be defrayed by the Ealing corporation.

20. For the purposes of summoning jurors and of jury service any parish which is affected by this order shall be deemed to continue in existence unaffected until a new jurors book comes into force.

PART V.

FUNCTIONS PROPERTY LIABILITIES &C. OF LOCAL AUTHORITIES.

Altered
boroughs.

21. Subject to the provisions of this order all functions property (not being property held on any charitable trust) and liabilities vested in or attaching to the corporation of either of the boroughs shall be discharged or held by the corporation for the benefit or in respect of the altered borough :

Provided that—

- (a) any property or liabilities vested in or attaching to the Willesden corporation in relation exclusively to the transferred area shall by virtue of this order be transferred to and vest in or attach to the Ealing corporation ;
- (b) subject to paragraph (a) hereof any functions property or liabilities so vested or attaching in relation exclusively to any part of the borough shall be discharged or held for the benefit or in respect of that part.

Housing
schemes.
26 Geo. 5 &
1 Edw. 8.
c. 51.

22. Any houses or land held by the Willesden corporation for the purposes of the Housing Act 1936 within the transferred area shall by virtue of this order be transferred to and vest in the Ealing corporation.

Transferred
property and
liabilities.

23. Save as otherwise provided all property and liabilities transferred to the Ealing corporation shall be held or discharged by them for the benefit or in respect of their altered borough.

Mortgage
and other
securities.

24.—(1) Where by this order or by any adjustment made in consequence thereof the liability for the repayment of the whole or any part of a debt secured by a mortgage of a public body or their predecessors in title is transferred from or by one public body (in this paragraph referred to as the transferor authority) to another public body (in this paragraph referred to as the transferee authority) then in each such case the mortgage shall thenceforward take effect in all respects as a mortgage by the transferee authority of their revenues to secure the debt or part of the debt transferred and the interest thereon and a mortgage by the transferor authority of their revenues to secure the part (if any) of the debt for the repayment of which they remain

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liable and the interest thereon and the covenants contained in the mortgage so far as they relate to the debt or part of the debt transferred or the interest thereon shall be enforceable against the transferee authority and so far as they relate to the part (if any) of the debt for the repayment of which the transferor authority remain liable and the interest thereon shall be enforceable against the transferor authority.

(2) Subject as aforesaid where by this order or by any adjustment made in consequence thereof any liability or part of a liability which is charged on any fund or revenues of a public body is transferred to another public body the liability so transferred shall thenceforward be charged indifferently on all the revenues of the public body to whom it is transferred and shall cease to be a charge on the fund or revenues on which it was theretofore charged.

PART VI.

ACTS ORDERS BYELAWS &C.

25.—(1) Subject to the provisions of this order the unrepealed provisions of—

- (a) any local Act or provisional order confirmation Act affecting either of the boroughs; and
- (b) any order having the force of an Act which affects either of the boroughs;

shall apply to the altered borough and any reference therein which is applicable to the existing borough shall be construed as a reference to the altered borough.

(2) The provisions of any protective section for the benefit of the Willesden corporation (or their predecessors) which may be contained in any local Act provisional order confirmation Act or order having the force of an Act by whomsoever obtained so far as they relate to or affect the transferred area or any part thereof shall enure to the benefit of the Ealing corporation and in relation to the transferred area those provisions shall be construed as if a reference to the Ealing corporation were substituted therein for any references to the Willesden corporation.

(3) Nothing in this order shall alter the area for the supply of gas water or electricity by any company body or local authority under any Act provisional order confirmation Act or order made in pursuance of the Gas Undertakings Acts 1920 to 1934 or the Electricity (Supply) Acts 1882 to 1936 or shall prejudice or affect the existing powers or charges of any such company body or local authority under any such Act or order.

(4) Nothing in this order shall render the transferred area liable to contribute to any deficiency rate of the Metropolitan

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—cont.

Certain Acts
and orders
affecting
borough of
Ealing.

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—*cont.*

Infectious
Disease (No-
tification)
Act 1889.
52 & 53 Vict.
c. 72.

Nursing
homes.

17 & 18 Geo. 5.
c. 38.

Water Board and any sum payable under a precept issued to the Ealing corporation by that board shall be levied on that part of the existing borough of Ealing which is liable to contribute to the deficiency rate and shall be collected together with and as an additional item of the general rate of the borough.

26. Any order in force under the Infectious Disease (Notification) Act 1889 throughout either of the boroughs shall apply to the altered boroughs and shall cease to have effect in relation to any area transferred therefrom.

27.—(1) The town clerk of Willesden shall send to the town clerk of Ealing copies of all entries in the register of nursing homes kept by the Willesden council under the Nursing Homes Registration Act 1927 relating to premises in the transferred area.

(2) It shall be the duty of the town clerk of Ealing to include any particulars furnished to him under the provisions of this section in the register of nursing homes kept by the Ealing borough council.

(3) Any exemption in force under the said Act in respect of premises within the transferred area shall continue in force until the exemption expires.

Acts
relating to
maternity
and child
welfare and
midwives.

7 Edw. 7. c. 40.
5 & 6 Geo. 5.
c. 64.
8 & 9 Geo. 5.
c. 29.
26 Geo. 5. &
1 Edw. 8. c. 49.

28.—(1) The Council of each of the boroughs shall as respects their altered borough—

(a) until the first day of October nineteen hundred and thirty-seven be the authority for the purposes of the Notification of Births Acts 1907 and 1915 and the Maternity and Child Welfare Act 1918;

(b) thereafter be the welfare authority for the purposes of Part VII of the Public Health Act 1936.

(2) For the purposes of the Midwives Acts 1902 to 1936 the council of each of the boroughs shall be the local supervising authority for their altered borough.

Small
Dwellings
Acquisition
Acts 1899 to
1923.

29. For the purposes of the Small Dwellings Acquisition Acts 1899 to 1923 the council of each of the boroughs shall be the authority for their altered area.

Orders
relating to
shops.
4 Edw. 7.
c. 31.

30. Nothing in this order shall prejudice or affect any order in force under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1936 in any area affected by this order and that order shall subject to the provisions of those Acts remain in force and apply to the area to which it applied immediately before the appointed day.

Adoptive
Acts.

31. Subject to the provisions of this order the provisions of any public general Act in force throughout either of the boroughs by virtue of an adoption by the council thereof or their

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predecessors and any order in force under such Act throughout the borough shall apply to the altered borough and shall cease to have effect in relation to any area transferred therefrom.

32.—(1) The Burial Acts 1852 to 1906 shall cease to be in force in the transferred area.

Burial Acts
1852 to 1906.

(2) Nothing in this order shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day in relation to any burial ground.

(3) Nothing in this order shall prejudicially affect any right privilege authority or duty exercisable by or attaching to any incumbent or sexton under the Burial Acts 1852 to 1906.

33. Subject to any order which the Minister or the Secretary of State may make to take effect on or after the appointed day any order by virtue of which any part or section of the Public Health Acts Amendment Act 1907 or the Public Health Act 1925 is in force throughout either of the boroughs and any other order under either of those Acts so in force shall apply to the altered borough.

Orders under
Public Health
Acts Amend-
ment Act 1907
and Public
Health Act
1925.
7 Edw 7. c. 53.
15 & 16 Geo. 5.
c. 71.

34. All the functions of a parish council with which the council of either of the boroughs are invested by any order of the Local Government Board or the Minister under the Local Government Act 1894 or the Act of 1933 in respect of the whole of their borough or the parish comprised therein shall be discharged by that council in respect of the altered borough or (except in relation to charities) the parish comprised therein.

Parish
council
powers.
56 & 57 Vict.
c. 73.

35.—(1) Subject to the provisions of this order any local government byelaws in force in the transferred area which were made by the council of either of the boroughs shall continue to apply to that area—

Borough
byelaws
regulations
scales of
charges &c.

(a) if made before the first day of January nineteen hundred and twenty-seven for one year after the appointed day (unless previously repealed or altered) but no longer;

(b) if made on or after the first day of January nineteen hundred and twenty-seven until they are repealed or altered;

and any byelaws so continued in force in the transferred area shall have effect as if they had been made by the Ealing council.

(2) Any proceedings which if this order had not been made might have been taken by the Willesden council in respect of an offence committed before the appointed day against any byelaws which by this section are continued in force in the transferred area may be taken by the Ealing council.

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(3) Subject to the provisions of this order all byelaws other than local government byelaws and any scale of charges made by the council of either of the boroughs and in force throughout their existing borough shall apply to the altered borough until repealed or altered.

(4) In this section—

(a) the following expressions have the respective meanings hereby assigned to them:—

(i) “byelaws” includes any regulation and “local government byelaws” means byelaws which if made on the appointed day would require to be confirmed by the Minister;

(ii) “scale of charges” includes any list of tolls or table of fees or payments not prescribed by byelaws;

(b) any reference to byelaws or a scale of charges made by a council shall be read as including a reference to byelaws or a scale of charges made by their predecessors.

PART VII.

RATING AND VALUATION.

Special
properties.

36.—(1) The Ascertainment of Rateable Value (No. 1) Order 1928 shall have effect with the substitution of a reference to the altered borough of Ealing for the reference to the existing borough of Ealing.

(2) The Ealing council shall make such adjustments in the values of rateable hereditaments situate in the transferred area as may be necessary to give effect to the provisions of this section.

Valuation
lists &c.

37.—(1) Before the appointed day such alterations of the valuation lists in force shall be made as may be necessary for the purpose of ensuring that the valuation list of each of the boroughs shall correspond with the altered borough.

(2) For this purpose the town clerk of Willesden shall not later than the twenty-fifth day of March nineteen hundred and thirty-seven send to the town clerk of Ealing to the clerk of the West Middlesex assessment committee and to the clerk of the Willesden assessment committee copies of all entries in the valuation list of the borough of Willesden which relate to hereditaments within the transferred area including any hereditament which by reason of the transfer becomes two or more hereditaments one or more of which is situate within the transferred area and shall cancel the entries in that valuation list.

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(3) Subject to such adjustments in the values of hereditaments as may be required by the last preceding section the town clerk of Ealing shall incorporate the copies of entries received by him under the last preceding subsection with the valuation list of the borough of Ealing the clerk of the West Middlesex assessment committee shall incorporate the copies of entries so received by him with the copy in his possession of that valuation list and the clerk of the Willesden assessment committee shall cancel in the copy in his possession of the valuation list of the borough of Willesden the entries of which copies are received by him under this section :

Provided that the provisions of this subsection shall not extend to a copy of any entry relating to a hereditament which by reason of the transfer of an area becomes two or more hereditaments.

(4) It shall be the duty of the clerk of the Willesden assessment committee as soon as possible after the appointed day to transmit to the clerk of the West Middlesex assessment committee all books and documents relating exclusively to hereditaments situate in the transferred area.

38.—(1) The preceding provisions of this part relating to special properties and valuation lists shall have effect subject to the provisions of this section.

Valuation
of divided
heredita-
ments.

(2) Where by reason of the transfer of any area any hereditament is divided into two or more hereditaments the councils of the boroughs shall forthwith take all necessary steps in accordance with the provisions of the Rating and Valuation Acts 1925 to 1932 to secure that the separate hereditaments are correctly entered in the appropriate valuation lists.

39. Any direction for the rating of owners or the allowance of a discount in respect of rates which may be in force in the borough of Ealing shall apply to the altered borough.

Rating of
owners and
discount
for rates.

40.—(1) For the purpose of securing that precepts for county contributions whether issued before on or after the date of this order for the financial year commencing on the appointed day may be based on rating areas and parishes as altered by this order the clerk of the county council shall make such adaptations of and alterations in the estimates of the produce of a rate of a penny in the pound furnished to the county council by the councils of the boroughs as may be necessary to bring those estimates into conformity with the alteration of rating areas and parishes.

Precepts.

(2) It shall be the duty of the town clerks of the boroughs to supply the clerk of the county council with such information as he may require for the purpose of giving effect to the provisions of this section.

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—cont.Arrears of
rates.

(3) Notwithstanding the alterations of area effected by this order all precepts made in respect of a financial period commencing before the appointed day shall be as valid in law as if this order had not been made.

41. All rates made but not collected at the appointed day in respect of hereditaments situate within the transferred area shall be collected and recovered by the Ealing council.

PART VIII.

OFFICERS.

Compensa-
tion.

42.—(1) Every officer in office on the date of this order who by virtue of this order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments and for whose compensation for that loss no other provision is made by any enactment or any other statutory order for the time being in force shall be entitled to compensation under this order for that loss.

(2) Any compensation payable under this order to an officer shall be awarded and paid by the Ealing council and any claim for compensation shall be made by the officer accordingly.

(3) For the purposes of the determination and payment of compensation to officers under this order the provisions set out in the Fourth Schedule to the Act of 1933 are hereby incorporated with this order.

PART IX.

SUPPLEMENTARY.

Housing.

43.—(1) Any resolution passed or other proceeding taken by the Willesden council under the Housing Acts or any of them (including orders notices agreements undertakings and demands made given or entered into under any of those Acts) may so far as the resolution or proceeding relates to any houses buildings or land within the transferred area be carried into effect or continued by the Ealing council as if the resolution or proceeding had been passed, or taken by them.

(2) References to the Willesden council in any order made by that council under the Housing Acts or any of them and confirmed or approved by the Minister shall so far as the order relates to houses buildings or land within the transferred area be read as references to the Ealing council.

(3) For the purposes of this section the expression the Housing Acts has the same meaning as in the Housing Act 1936.

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—cont.

Town and
country
planning.

44.—(1) Any resolution passed or other proceeding taken by or on behalf of the Willesden council under the Act of 1932 (including agreements orders and consents entered into made or given thereunder) shall so far as it affects land included in the transferred area have effect as if the same had been passed or taken by or on behalf of the Ealing council.

(2) Any dispensation approval or consent given by the Minister under or in pursuance of the Act of 1932 to the Willesden council shall so far as it affects land or the planning of land included in the transferred area have effect as if the same had been given to the Ealing council.

(3) In this section "the Act of 1932" means the Town and Country Planning Act 1932 or any enactment thereby repealed. 22&23Geo.5.
c. 48.

45.—(1) The local land charges registrar (hereinafter referred to as the registrar) for the borough of Willesden shall within fourteen days after the appointed day supply to the registrar for the borough of Ealing an office copy of every entry in the land charges register (hereinafter referred to as the register) of the borough of Willesden relating to a charge affecting land within the transferred area. Local land
charges
registers.

(2) The registrar for the borough of Willesden shall be paid by the Ealing council such fees as are prescribed by the rules under the Land Charges Act 1925 in respect of any office copy supplied under subsection (1) of this section. 15&16Geo.5.
c. 22.

(3) The registrar for the borough of Ealing shall within fourteen days after the receipt of an office copy under subsection (1) of this section enter the particulars contained therein with any necessary modifications in the appropriate part of the register of the borough of Ealing.

(4) Until the first day of May nineteen hundred and thirty-seven or until the date on which all the entries required by the last preceding subsection have been made in the register of the borough of Ealing whichever is the earlier the following provisions shall have effect in relation to land within the transferred area:—

(a) where application is made by any person for a personal search in the register of the borough of Ealing the registrar shall give notice to the applicant that an additional search should be made in the register of the borough of Willesden;

(b) where application is made for an official search in the register of the borough of Ealing the registrar shall issue free of charge a certificate of official search in that register and shall forward to the registrar for the borough of Willesden the application received by him together with the fees paid in respect thereof;

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Ealing
(*Extension*)
*Order.*PART IX.
—cont.

(c) the registrar for the borough of Willesden shall permit and make such searches and furnish such office copies and certificates as he would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as he would have possessed and been subject to if this order had not been made;

(d) where an entry of a charge which has been duly made in the register of the borough of Willesden is required by this section to be transferred to the register of the borough of Ealing such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the latter register.

Charities.

46. Any power of appointing trustees of a charity subject to the jurisdiction of the Charity Commissioners which is exerciseable by the council of either of the boroughs and which ceases to be exerciseable in consequence of the alteration of areas made by this order may be exercised by such council as the Charity Commissioners may direct but nothing in this section shall in any way prejudice or affect the power of the Charity Commissioners under the Charitable Trusts Acts 1853 to 1925 to establish a scheme for the regulation of the charity.

Purchase of
electricity
under-
takings.

47. Any provision contained in any local Act provisional order confirmation Act or order having the force of an Act by whomsoever obtained or in any instrument entered into in pursuance of any such enactment conferring on the Willesden borough council a right of purchasing an electricity undertaking shall so far as that right relates to the transferred area or any part thereof enure to the benefit of the Ealing borough council and in relation to such area shall be construed as if a reference to the Ealing council were substituted in the provision for any reference to the Willesden council.

Existing
contracts
&c. and
proceedings.

48.—(1) Save as otherwise expressly provided all contracts deeds bonds agreements and instruments subsisting in favour of or against and all notices in force which were given by or by the predecessors of the Willesden council in relation exclusively to the transferred area or any part thereof shall be of full force and effect in favour of or against the Ealing council.

(2) If immediately before the appointed day any action or proceeding or any cause of action or proceeding is pending or existing by or against the Willesden council in relation to a matter exclusively affecting the transferred area or any part thereof the same shall not be prejudicially affected by reason of this order but may be continued prosecuted and enforced by or against the Ealing council.

[1 EDW. 8. & Ministry of Health [Ch. xii.]
1 GEO. 6.] Provisional Order Confirmation
(Ealing Extension) Act, 1937.

A.D. 1937.

(3) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this order.

*Ealing
(Extension)
Order.*

PART IX.

—cont.

49. Nothing in this order shall—

General
savings.

- (a) restrict any statutory powers of the Minister or the Registrar-General or restrict the powers of the Secretary of State or the county council under the Local Government Act 1894 the Act of 1929 or the Act of 1933;
- (b) affect the area of any coroner's district;
- (c) affect any power for the division of the parliamentary county of Middlesex into polling districts for parliamentary elections or for the division of the county into polling districts for the election of county councillors or any existing order or scheme for either of those purposes or for naming the polling places at any election;
- (d) affect the area of any district or sub-district for the purposes of the Births and Deaths Registration Acts 1836 to 1929 or the Marriage Acts 1811 to 1934;
- (e) affect the ecclesiastical divisions of any parish or the constitution of any ecclesiastical parish or prejudice vary or affect any power right interest or jurisdiction in over or in connection with any charitable endowment;
- (f) affect any right or interest under any inclosure award;
- (g) affect land tax; or
- (h) operate so as to continue in force any byelaw which would otherwise cease to have effect by virtue of any limitation on the duration of that byelaw imposed by the Public Health Act 1936.

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